

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KASON FOUST,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER PAUL PALMINTERI, Tax No. 18460,
SERGEANT GIL HIPOLITO, Tax No. 943296, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 3, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER PAUL PALMINTERI, Tax No. 18460, 83rd Precinct, 480
Knickerbocker Ave, Brooklyn, NY 11237
SERGEANT GIL HIPOLITO, Tax No. 943296, 83rd Precinct, 480 Knickerbocker Ave,
Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KASON FOUST,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER PAUL PALMINTERI, Tax No. 18460,
SERGEANT GIL HIPOLITO, Tax No. 943296, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
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Plaintiff KASON FOUST, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 4, 2016, at approximately 11:30 p.m., plaintiff Kason Foust, while lawfully in front of 315 Bleecker Street, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, strip search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned for approximately 17 hours until the Kings County District Attorney declined to prosecute plaintiff, and he was released from custody. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, strip searched, confined, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KASON FOUST is a resident of the state of New York.

3. POLICE OFFICER PAUL PALMINTERI, Tax No. 18460, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER PAUL PALMINTERI, Tax No. 18460, is and was at all times relevant herein, assigned to the 83rd Precinct

5. POLICE OFFICER PAUL PALMINTERI, Tax No. 18460, is being sued in his individual and official capacity.

6. SERGEANT GIL HIPOLITO, Tax No. 943296, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT GIL HIPOLITO, Tax No. 943296, is and was at all times relevant herein, assigned to the 83rd Precinct

8. SERGEANT GIL HIPOLITO, Tax No. 943296, is being sued in his individual and official capacity

9. New York City Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 4, 2016, at approximately 11:30 p.m., plaintiff was lawfully present in front of 315 Bleecker Street, Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

16. By way of background, plaintiff had just arrived in front of 315 Bleecker Street to visit his godparents and godbrother who live there.

17. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

18. Before plaintiff had an opportunity to approach or enter 315 Bleecker Street the defendant officers unlawfully stopped, questioned, and frisked plaintiff without legal justification or probable cause.

19. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

20. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers without legal justification or probable cause.

21. Plaintiff was transported by the defendant police officers to the 83rd Precinct against his will, where he was photographed, fingerprinted and then placed in a holding cell by the defendants.

22. At the precinct, defendants conducted a strip search of plaintiff, without probable cause to believe plaintiff secreted any illegal drugs, weapons or contraband underneath his clothing, causing plaintiff to suffer humiliation and severe emotional distress.

23. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff, or from plaintiff's possession, custody or control.

24. At no time relevant herein did the defendant police officers explain to plaintiff why he was being arrested.

25. After approximately 14 hours in custody, plaintiff was transported from the 83rd Precinct to Kings County Central Booking and detained in a holding cell.

26. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information in support of the charges the officers charged plaintiff with, including but not limited to that they recovered illegal drugs from claimant's possession, custody or control and that plaintiff committed a crime.

27. On August 5, 2016 at approximately 4 p.m., after being unlawfully detained for approximately 17 hours, the District Attorney declined to prosecute plaintiff on the basis that the DA could not establish that plaintiff had “dominion or control” over any illegal drugs or contraband allegedly recovered by the defendant police officers, and he was released from custody.

28. As a result of the false arrest and imprisonment of plaintiff, plaintiff missed his young daughter’s birthday celebrations.

29. Some of the police officer defendants observed the violation of plaintiff’s rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, and strip search of plaintiff.

30. The unlawful search, false arrest, and false imprisonment, and strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff’s Fourth and Fourteenth Amendment Rights

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.

32. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, strip searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff’s right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

33. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

36. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

38. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

39. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

41. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

42. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

45. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. Defendants lacked probable cause to search plaintiff.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion or probable cause that plaintiff was concealing drugs, weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

53. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and he sustained great emotional injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

56. Defendants failed to intervene to prevent the unlawful conduct described herein.

57. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

61. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Kason Foust demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 3, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 3, 2019

/s/
DAVID M. HAZAN